PETITION - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

IN THE ..... COURT
(Clerk of the court that entered the conditional discharge order - see the filing instructions in this packet)

Judicial division:
.....

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, as it appears on the conditional discharge order:
.....

APPLICATION TO EXPUNGE RECORDS OF ARREST, TRIAL AND CONVICTION AFTER A FIRST-OFFENCE CONTROLLED SUBSTANCE CONDITIONAL DISCHARGE, W. VA. CODE Sec. 60A-4-407(B)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under W. Va. Code Sec. 60A-4-407(a); W. Va. Code Sec. 60A-4-407(b); W. Va. Code Sec. 60A-4-407(c); W. Va. Code Sec. 60A-4-401(c); W. Va. Code Sec. 60A-4-407a and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person who has not previously been convicted of any offence under chapter 60A or under any federal or state narcotics, marihuana, stimulant, depressant or hallucinogenic drug statute, and who pleads guilty to or is found guilty of possession of a controlled substance under Sec. 60A-4-401(c), may with their consent have further proceedings deferred and be placed on probation without entry of a judgment of guilt. On fulfilment of the terms and conditions the court discharges the person and dismisses the proceedings without adjudication of guilt. The discharge is not a conviction for purposes of any disqualification or disability imposed by law, and its effect is to restore the person in contemplation of law to the status occupied before arrest and trial. There may be only one discharge and dismissal under the section with respect to any person. Read at source on 2026-08-06, subsection (b) supplies the relief this track generates: after a period of not less than six months, beginning to run immediately on the expiration of the term of probation, the person may apply to the court for an order to expunge from all official records all recordations of the arrest, trial and conviction, and if the court determines after a hearing that the person was not guilty of any serious or repeated violation of the conditions of probation during probation or before the application, it shall order the expungement. Subsection (c) makes the person liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may be a condition of probation.

B. THE PETITIONER, AND THE TWO THINGS THE PLATFORM ALREADY HOLDS

The platform holds your full legal name and your date of birth from your own record. Both are printed

here and again at items C1 and C2 below, so neither is a blank you have to fill. Read each against your own papers and correct it in writing if it is wrong. Every other item in section C belongs to the court record, and you fill it from the record itself.

Full legal name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, except items C1 and C2, which the platform has already answered from the facts it holds.

[C1 - applicant name] What is your full legal name as it appears on the court record?
Maria-Alejandra O'Shaughnessy-Whitfield
(Answered from the name the platform holds. Read it against the court record and correct it in writing if the court record writes it differently.)

[C2 - date of birth] What is your date of birth?
1968-12-31
(Answered from the date of birth the platform holds. Read it against your own papers and correct it in writing if it is wrong.)

[C3 - court and county] Which court, and in which county, placed you on probation under the conditional discharge?
.....
.....

[C4 - case number] What is the case number?
.....
.....

[C5 - arrest date] On what date were you arrested, and which agency arrested you?
.....
.....

[C6 - offense charged] What possession offence were you charged with, and under which Code section?
.....
.....

[C7 - discharge order date] On what date did the court enter the order deferring proceedings and placing you on probation?
.....
.....

[C8 - probation term] How long was the probation term the court imposed?

.....
.....

[C9 - probation expiry date] On what date did that probation term expire?
.....
.....

[C10 - dismissal date] On what date did the court discharge you and dismiss the proceedings?
.....
.....

[C11 - probation violations] During probation, or since it ended, has anyone alleged that you broke the conditions of your probation?
.....
.....

[C12 - prior drug conviction] Before this case, had you ever been convicted of any drug offence, in West Virginia, another state or a federal court?
.....
.....

[C13 - prior conditional discharge] Have you ever had a conditional discharge under this section before, in any West Virginia case?
.....
.....

[C14 - court costs paid] Have you paid the court costs the court assessed in this case?
.....
.....

D. NOTICE OF THE HEARING SECTION 60A-4-407(B) CONTEMPLATES

Section 60A-4-407(b) provides for a hearing at which the court determines whether the petitioner was guilty of any serious or repeated violation of the conditions of probation. The committed track registry records a hearing date on this application's notice line as an item to be completed before filing. That date is the court's to set: ask the clerk of the court that entered the conditional discharge for it, and write it on the line below before you file. Nothing on this line is written for you, because this build never writes a date no court has set.

Hearing date:
.....

E. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under W. Va. Code Sec.

60A-4-407(a); W. Va. Code Sec. 60A-4-407(b); W. Va. Code Sec. 60A-4-407(c); W. Va. Code Sec. 60A-4-401(c); W. Va. Code Sec. 60A-4-407a.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

SUPPORTING AFFIDAVIT - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

IN THE ..... COURT
(Clerk of the court that entered the conditional discharge order - see the filing instructions in this packet)

Judicial division:
.....

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, as it appears on the conditional discharge order:
.....

AFFIDAVIT IN SUPPORT OF THE APPLICATION TO EXPUNGE RECORDS OF ARREST, TRIAL AND CONVICTION AFTER A FIRST-OFFENCE CONTROLLED SUBSTANCE CONDITIONAL DISCHARGE, W. VA. CODE Sec. 60A-4-407(B)

STATE OF WEST VIRGINIA
COUNTY OF .....

A. WHY THIS AFFIDAVIT IS IN THIS PACKET, AS THE COMMITTED RECORD STATES IT

The committed track registry for this route records, in its own words, that the applicant signs the application and swears the affidavit, and that notarization is required on the supporting affidavit. This page is that affidavit. It is filed with the application, and it is sworn before a notary public or other officer authorized to administer oaths - not before.

B. THE AFFIANT

I, Maria-Alejandra O'Shaughnessy-Whitfield, am the petitioner named in the application filed with this affidavit. My date of birth is 1968-12-31. The platform holds my name and my date of birth from my own record and has printed both here, so neither is a blank I have to fill; I have read each against my own papers and corrected it in writing if it was wrong.

C. THE DATES THIS APPLICATION DEPENDS ON, WHICH I SUPPLY FROM THE RECORD

Each date below is copied from the certified orders and from the probation office's written confirmation, never from memory. The period of not less than six months runs from the expiration of the term of probation, not from the date of the dismissal, and the registry records that the two are often months apart.

[A1 - discharge order date] On what date did the court enter the order deferring proceedings and placing you on probation?
.....

[A2 - probation expiry date] On what date did that probation term expire?
.....

[A3 - dismissal date] On what date did the court discharge you and dismiss the proceedings?
.....

D. WHAT I SWEAR TO, IN MY OWN WORDS

The lines below are mine alone and nothing on them is written for me. This packet states nothing about whether the conditions of the probation were kept: the committed record reserves that determination to the court, and W. Va. Code Sec. 60A-4-407(b) makes it the question the court decides after a hearing.

[A4 - completion of probation] In your own words, what you did to complete the terms and conditions of the probation the court imposed:
.....
.....
.....

[A5 - earlier drug case or earlier discharge] In your own words, what you know about any earlier drug conviction, and about any earlier discharge and dismissal under this section:
.....
.....

AFFIANT'S CONTACT DETAILS, AS THE PLATFORM HOLDS THEM

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

I swear or affirm that the statements above are true.

SIGNATURE OF AFFIANT .....
DATE .....

(You sign this affidavit before a notary public or other officer authorized to administer oaths, and not before. The block below is completed by that officer, never by you and never by this packet.)

Taken, subscribed and sworn to before me this ..... day of ....., 20.....
Officer authorized to administer oaths .....

CERTIFICATE OF SERVICE - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

IN THE ..... COURT
(Clerk of the court that entered the conditional discharge order)

Judicial division:
.....

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, as it appears on the conditional discharge order:
.....

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below, and not before, I delivered a copy of the application to expunge and of the supporting affidavit filed with it to each of the two offices named below.

The committed track registry for this route records service in these words: serve the prosecuting attorney of the county and the supervising probation office, following the Sec. 61-11-26(e) service practice West Virginia clerks expect. Both offices are served. Neither block below is optional, and this page certifies only what was actually delivered.

FIRST RECIPIENT - THE PROSECUTING ATTORNEY OF THE COUNTY

Name and office of the county prosecuting office the papers were delivered to:
.....

Address at which the papers were delivered to that office:
.....

How the papers were delivered to that office - by hand, by mail, or by the electronic method the court accepts:
.....

SECOND RECIPIENT - THE SUPERVISING PROBATION OFFICE

Name and office of the supervising probation office the papers were delivered to:
.....

Address at which the papers were delivered to that office:
.....

How the papers were delivered to that office - by hand, by mail, or by the electronic method the court accepts:
.....

DATE ..... SIGNATURE OF PETITIONER .....

(DO NOT SIGN OR DATE THIS PAGE YET.)
You sign and date this certificate only after the papers have actually been delivered to both offices. A certificate signed before a delivery, or between the two deliveries, states something that has not happened.

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

RECORDS CHECKLIST - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

The committed track registry for this route records the documents you must obtain before this application can be filed, who holds each one, and which answer in this packet each one is used to check. They are set out below in the registry's own words. Nothing on this page is a fact about your case; it is a list of the records your case's own facts have to be read from.

GET THESE BEFORE YOU FILE

[ ] Obtain Conditional discharge order and the order of discharge and dismissal. Ask the clerk for certified copies of the order deferring proceedings and placing you on probation, and of the later order discharging you and dismissing the proceedings. Both dates matter and they are usually different.
Who holds it: Clerk of the court that entered them.
Check your answer to "On what date did the court enter the order deferring proceedings and placing you on probation?" against Conditional discharge order and the order of discharge and dismissal, and correct the packet if they disagree.

[ ] Obtain Written confirmation of the date the probation term expired. Ask the supervising probation office for written confirmation of the date your probation term expired. The six-month clock runs from that date, not from the dismissal, and the two are often months apart.
Who holds it: The probation office that supervised the participant.
Check your answer to "On what date did that probation term expire?" against Written confirmation of the date the probation term expired, and correct the packet if they disagree.

GET THIS IF IT APPLIES TO YOU

[ ] Obtain Receipt or clerk's confirmation that court costs were paid. Ask the clerk for a payment history or a receipt showing the assessed costs are paid.
Who holds it: Clerk of the court that assessed them.
When it applies: Only where court costs were assessed under Sec. 60A-4-407(c) and the participant is unsure whether they are satisfied.
Check your answer to "Have you paid the court costs the court assessed in this case?" against Receipt or clerk's confirmation that court costs were paid, and correct the packet if they disagree.

WHY THE TWO DATES ARE NOT THE SAME DATE

The six-month period this application depends on begins to run on the expiration of the term of probation, not on the date the court dismissed the proceedings. The registry records that the two are often months apart, which is why the probation office's written confirmation is a separate record from the clerk's orders and why both are required.

This page is a checklist. It is not filed with the court and it asserts nothing about your case.

FILING INSTRUCTIONS - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Application to Expunge Records of Arrest, Trial and Conviction After a First-Offence Controlled Substance Conditional Discharge, W. Va. Code Sec. 60A-4-407(b).

A person who has not previously been convicted of any offence under chapter 60A or under any federal or state narcotics, marihuana, stimulant, depressant or hallucinogenic drug statute, and who pleads guilty to or is found guilty of possession of a controlled substance under Sec. 60A-4-401(c), may with their consent have further proceedings deferred and be placed on probation without entry of a judgment of guilt. On fulfilment of the terms and conditions the court discharges the person and dismisses the proceedings without adjudication of guilt. The discharge is not a conviction for purposes of any disqualification or disability imposed by law, and its effect is to restore the person in contemplation of law to the status occupied before arrest and trial. There may be only one discharge and dismissal under the section with respect to any person. Read at source on 2026-08-06, subsection (b) supplies the relief this track generates: after a period of not less than six months, beginning to run immediately on the expiration of the term of probation, the person may apply to the court for an order to expunge from all official records all recordations of the arrest, trial and conviction, and if the court determines after a hearing that the person was not guilty of any serious or repeated violation of the conditions of probation during probation or before the application, it shall order the expungement. Subsection (c) makes the person liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may be a condition of probation.

WHERE IT GOES

Clerk of the court that entered the conditional discharge order
File the application with the clerk of the court that deferred proceedings and placed the participant on probation, once at least six months have run from the expiration of the probation term. The statute contemplates a hearing at which the court determines whether there was any serious or repeated violation of the conditions of probation.
Venue: The court that entered the conditional discharge and imposed probation. Section 60A-4-407(b) directs the application to 'the court', which is the court whose probation expired.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Section 60A-4-407 charges no fee for the application. Under subsection (c) the participant remains liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may have been made a condition of probation. Whether a circuit clerk charges a civil filing fee for the application is not established by the section. Fee waiver as recorded: none stated in Sec. 60A-4-407.

WHO MUST BE SERVED

Service as recorded: Serve the prosecuting attorney of the county and the supervising probation office, following the Sec. 61-11-26(e) service practice West Virginia clerks expect. Notice as recorded: Section 60A-4-407(b) provides for a hearing but names no statutory notice or opposition window. The application is served on the prosecuting attorney as a matter of ordinary practice.
Two offices, not one. The certificate of service in this packet carries a separate recipient block for the county prosecuting office and for the supervising probation office, because the record names both. Deliver to both, record each delivery in its own block, and sign and date the certificate only after the second delivery has actually happened. The certificate covers the application and the supporting affidavit; this packet contains no proposed order and the certificate does not say that it does.

WHAT THE RECORD SAYS YOU MUST COMPLETE BEFORE YOU FILE

These are the completion items the committed track registry records for this route, in its own words, and what each one means on the pages in this set.

- Applicant's signature on the application - Application, signature block. You sign personally; nothing on this page is signed for you.
- Affidavit signature, date and jurat - Supporting affidavit, foot of the document. You sign and date the affidavit in front of the officer, and the jurat is that officer's to complete.
- Case number and judicial division line - Application, caption block. Both are on the caption of the application, the affidavit and the certificate of service; copy them from the certified conditional discharge order and from the caption of your own case papers.
- Prosecuting attorney and probation office addresses, and the certificate of service date and signature - Certificate of service. Each office has its own recipient block on that page.
- Hearing date - Application, notice line. Ask the clerk of the court that entered the conditional discharge for the date. The court sets it; this packet never writes one.
- The applicant signs the application and swears the affidavit.
- Notarization: Required on the supporting affidavit. Swear it before a notary public or other officer authorized to administer oaths, and not before.

WHAT THE RECORD SAYS YOU MUST KNOW

- Expungement window: at least six months after the end of probation, the person may apply for expungement of official records of the arrest, trial, and conviction.
- One-time limit: only one discharge and dismissal is allowed under this section.
- What LegalEase can prepare: the application, the probation expiration proof, and the six-month calculation.
- Before drafting anything for these tracks, confirm the Judiciary form index. If drafting proves necessary, the section 61-11-26(d) petition contents list is the right model for verified content, and the section 61-11-26(e) service list is the right model for service, even on tracks governed by other statutes, because West Virginia circuit clerks will expect that shape.
- Tell the participant to obtain the conditional discharge order, the order of discharge and dismissal, and the probation office's written confirmation of the probation expiry date, and to attach them.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Anyone has alleged that the participant committed a serious or repeated violation of the conditions of probation, whether during probation or since.
- The participant has had a prior drug conviction or a prior conditional discharge, either of which means the underlying discharge should not have been available.
- Probation was revoked, or the court entered an adjudication of guilt.
- The participant is also considering a Sec. 61-11-26 conviction expungement, because whether this relief spends the once-per-lifetime petition is unresolved.
- The court sets a contested hearing or the prosecuting attorney objects.
- The clerk of the court will not accept a self-drafted application, or requires a local form.
- Firearm rights, immigration consequences, professional licensing, or federal, tribal, military or out-of-state records questions.
- LegalEase must not generate any assertion about the participant's probation violation history. The court determines whether there was a serious or repeated violation.
- If the prosecuting attorney objects or the court sets a contested hearing on the probation-violation question, automated assistance ends and the participant needs a lawyer. The initial packet still generates.

THE PAGES IN THIS SET

- wv_drug_conditional_discharge-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a first drug-possession case that ended in a conditional discharge)
- wv_drug_conditional_discharge-supporting-affidavit-2: the sworn affidavit the committed record requires with the application, signed before a notary public or other officer authorized to administer oaths (Clear a first drug-possession case that ended in a conditional discharge)
- wv_drug_conditional_discharge-certificate-of-service-3: the page on which the participant records that the papers were actually delivered to both offices the record names, signed only after delivery (Clear a first drug-possession case that ended in a conditional discharge)
- wv_drug_conditional_discharge-records-checklist-4: the records the participant must have in front of them before the application can be completed (Clear a first drug-possession case that ended in a conditional discharge)
- wv_drug_conditional_discharge-filing-instructions-5: this page